PANJAB UNIVERSITY CHANDIGARH

(Estted. under the Panjab University Act VII of 1947-enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

HUMAN RIGHTS AND VALUE EDUCATION

(ADD-ON COURSE)

CERTIFICATE, DIPLOMA AND ADVANCED DIPLOMA

EXAMINATIONS 2019

PAJAB UNIVERSITY, CHANDIGARH

Outline of tests, syllabi and courses of reading for Certificate, Diploma and Advanced Diploma in **Human Rights and Value Education (Add-on Course)** for the examination of 2019.

CERTIFICATE COURSE

PAPER –A: FUNDAMENTALS OF HUMAN RIGHTS AND DUTIES

M. Marks: 100
Theory: 90
Internal Assessment: 10
Time: 3 Hours

Unit I – Understanding the Concepts of Human Rights and Duties

i) Key Concepts: Rights, Duties;

ii) Nature of rights: absolute/reasonable; universal/ relativistic; discriminatory/justifiably differential;

iii) Linkage with core concepts of Liberty, Equality, Justice and Fraternity.

Unit II – Classification of Rights and Duties

i) Rights – moral, social, cultural, economic, civil and political;

ii) Duties – towards self, family, community, society, nation/state, humankind and mother earth;

iii) Interrelationship of rights and duties.

Unit III – Historical Evolution

i) Tracing the history of the development of the concept of Human Rights prior to the Universal Declaration of Human Rights, 1948;

ii) International Bill of Rights: Universal Declaration of Human Rights, 1948; International Covenant on Civil and Political Rights, 1966; International Covenant on Economic, Social and Cultural Rights, 1966.

Unit IV –Regional Mechanisms on Human Rights

i) Inter American Regional System

ii) African Regional system

iii) European Regional system

INTSTRUCTION FOR THE PAPER SETTERS AND THE CANDIDATES:

Note: (i) For written paper, the students will be required to attempt five questions in all. Question No. 1 will be compulsory comprising of 12 short answer type questions of 2 marks each and will cover the entire syllabus. The students are required to attempt nine short answer type questions out of 12 i.e. 9x2 = 18 marks.

(ii) In addition to it, Questions Nos. I to IX will consists of long answer (Easy Type) questions i.e. form each Unit with internal choice carrying 18 marks each i.e. 4x18 = 72

Essential Readings:

Beitz, Charles (2009), *The Idea of Human Rights*, Oxford: Oxford University Press.

Donnelly, Jack (2013),*Universal Human Rights in Theory and Practice* (3rd (third) Edition) Ithaca: Cornell University Press.

Gordon Lauren, Paul (2003), *The Evolution of International Human Rights: Visions Seen*. Second Edition. Philadelphia: University of Pennsylvania Press.

Hansungule, Michelo (2010), *The Historical Development Of International Human Rights,* South Africa: University of Pretoria.

Ishay, Micheline R. (2008), *The History of Human Rights: From Ancient Times to the Globalization Era,* US: University of California.

Further Readings:

Morsink, Johannes (1999), *The Universal Declaration of Human Rights: Origins, Drafting and Intent,* Philadelphia: University of Pennsylvania Press.

UN Centre for Human Rights (1996), *International Human Rights Standards for Law Enforcement*, Geneva: World Campaign for Human Rights.

UN Centre for Human Rights (1996), *The International Bill of Human Rights,* Geneva: World Campaign for Human Rights.

PAPER – B: HUMAN RIGHTS AND DUTIES IN INDIA

M. Marks: 100
Theory: 90
Internal assessment: 10
Time: 3 Hours

Unit I – Constitutional Framework

i) The Preamble

ii) Fundamental Rights

iii) Directive Principles of State Policy

iv) Fundamental Duties

Unit II - Statutory Mechanisms

i) National Human Rights Commission

ii) Punjab State Human Rights Commission

iii) National Commission for Women

iv) National Commission for Protection of Child Rights

Unit III - Socio-Economic Problems

i) Poverty

ii) Illiteracy

iii) Unemployment

Unit IV - Status of Third Generation Rights

i) Rights to Food

ii) Right to Health

iii) Right to Clean Environment

INTSTRUCTION FOR THE PAPER SETTERS AND THE CANDIDATES:

Note: (i) For written paper, the students will be required to attempt five questions in all. Question No. 1 will be compulsory comprising of 12 short answer type questions of 2 marks each and will cover the entire syllabus. The students are required to attempt nine short answer type questions out of 12 i.e. 9x2 = 18 marks.

(ii) In addition to it, Questions Nos. I to IX will consists of long answer (Easy Type) questions i.e. form each Unit with internal choice carrying 18 marks each i.e. 4x18 = 72

Essential Readings:

Baxi, Upendra (2002) *The Future of Human Rights*. New Delhi: Oxford University Press.

Donmelly, Jack (2013) *Universal Human Rights in Theory and Practice*. Ithaca: Cornell University Press.

Dube, M. P. and Neeta Bora, (ed.) (2000) Perspectives on Human Rights New Delhi: Anamika Publishers.

Easterly, William (2013), *The Tyranny of Experts: Economists, Dictators, and the Forgotten Rights of the Poor,* New York: Basic Books.

Jain, Mimmy (2005), *Human Rights for Beginners*, New Delhi: Karnataka Women's Information and Resource Centre.

Nirmal, Chiranjivi J. (2002), *Human Rights in India: Historical, Social and Political Perspectives,* New Delhi: Oxford University Press.

Sanajaoba, N. (2000) *Human Rights in the New Millennium*. New Delhi: Manas Publications.

Sen, Amartya (1999), *Development as freedom,* New York: Anchor Books.

Shelton, Dinah L (2007), *An Introduction to the History of International Human Rights Law,* Strasbourg, GW Law Faculty Publications.

Vadkar, Praveen, (2000) *Concepts, Theories and Practice of Human Rights*. New Delhi: Rajat Publications.

Further Readings:

Parekh, P. H. (2005/6) *Human Rights Year-Book,* New Delhi: Universal Law Publishing.

Rehman, M. M. et al. (2000) *Human Rights and Human Development: Concepts and Contexts*. New Delhi: Manak Publications.

Zarsky, Lyuba (ed.) (2002) *Human Rights and the Environment*. London: Earthscan Pub.

DIPLOMA COURSE

PAPER – A: HUMAN RIGHTS: INTERNATIONAL SCENARIO

M. Marks: 100
Theory: 90
Internal Assessment: 10
Time: 3 Hours

Unit I - Human Rights- Philosophical and Historical Perspectives

i) Philosophical Perspective: Meaning, nature, and classification of rights; Universal Human Values: Dignity, Justice and Equality;

ii) Historical Perspective: Magna Carta; British Bill of Rights; French and American Declarations.

Unit II - United Nations & Human Rights

i) Origin of United Nations

ii) UN Charter

iii) Principal Organs of United Nations

iv) The UN Human Rights Council

Unit III - International Bill of Rights

i) Universal Declaration of Human Rights, 1948;

ii) International Covenant on Civil and Political Rights, 1966;

iii) International Covenant on Economic Social and Cultural Rights, 1966.

Unit IV - Regional Mechanisms

i) European Convention on Human Rights

ii) American and Inter American Convention on Human Rights

iii) African (Banjul) Charter on Human and Peoples' Rights

iv) Asian Human Rights Charter

***Essential Readings*:**

Agarwal, H.O. (2004), *Human Rights*, Allahabad: Central Law Publications.

Brown, Gordon (2016), *The Universal Declaration of Human Rights in the 21st Century: A Living Document in a Changing World,* Cambridge, UK: Open Book Publishers.

Haeck, Yves and Brems, Eva (2014), *Human Rights and Civil Liberties in the 21st Century*, US: Springer Publication.

Kalin, W. and Kunzli, J. (2011). *The Law of International Human Rights Protection*. New York: Oxford University Press.

Kothari, Smitu and Harsh Sethi (ed.) (1991), *Rethinking Human Rights: Challenge for theory and Action,* New Delhi: Lokayan.

Krasno, Jean A. (2005), *The United Nations,* New Delhi: Viva.

Langley, Winstone E. (1999), *Encyclopedia of Human Rights Issues since 1945,* London: Fitzroy Dearborn Publishers.

Moeckli, D. Shah, S. and Sivakumaran, S. (2013). *International Human Rights Law,* New York: Oxford University Press.

Morsink, Johannes (1999), *The Universal Declaration of Human Rights: Origins, Drafting and Intent,* Philadelphia: University of Pennsylvania Press.

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson. Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Parekh, Pravin H (2010), *Human Rights Year Book 2010,* New Delhi: Universal Law Publishing.

Rarna, Jois (2001), *Legal and Constitutional History of India*, New Delhi: Universal Law Publishing.

Sharma, Mukul (2010), *Human Rights in a Globalised World: An Indian Diary*, New Delhi: Sage Publication.

Further Readings:

Tuck, R. (1979), *Natural Rights Theories,* Cambridge: Cambridge University Press.

UN Centre for Human Rights (1990), *Special Issue on Implementation of International Human Rights Instruments*, New York.

UN Centre for Human Rights (1996), *International Human Rights Standards for Law Enforcement*, Geneva: World Campaign for Human Rights.

UN Centre for Human Rights (1996), *The International Bill of Human Rights,* Geneva: World Campaign for Human Rights.

Vijapur, A.P. (1996), *The United Nations at Fifty: Studies in Human Rights,* New Delhi: South Asian Publishers.

PAPER – B: HUMAN RIGHTS AND DUTIES IN INDIA

M. Marks: 100
Theory: 90
Internal Assessment: 10
Time: 3 Hours

Unit I – The Constitution and Human Rights and Duties

Preamble to the Constitution of India; Fundamental Rights; Directive Principles of State Policy; Fundamental Duties; Interrelationship.

Unit II – Select Legislations

i) Right to Information Act, 2005
ii) Right to Education Act, 2009
iii) National Food Security Act, 2013
iv) Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

Unit III – Statutory Mechanisms

i) National Human Rights Commission
ii) Punjab Human Rights Commission
iii) National Commission for Women
iv) National Commission for Protection of Child Rights

Unit IV – Contemporary Human Rights Violations of Women and Children

i) Violence against Women: Domestic Violence, Sexual Violence, Honour Killing, Acid Attack.
ii) Children: Child Trafficking, Child Sexual Abuse, Child Labour.

v) INTSTRUCTION FOR THE PAPER SETTERS AND THE CANDIDATES:

Note: (i) For written paper, the students will be required to attempt five questions in all. Question No. 1 will be compulsory comprising of 12 short answer type questions of 2 marks each and will cover the entire syllabus. The students are required to attempt nine short answer type questions out of 12 i.e. 9x2 = 18 marks.

(ii) In addition to it, Questions Nos. I to IX will consists of long answer (Easy Type) questions i.e. form each Unit with internal choice carrying 18 marks each i.e. 4x18 = 72

Essential Readings:

Austin, Granville (2000) *Working of a Democratic Constitution: The Indian Experience*, New Delhi: Oxford University Press.

Basu, D.D. (2015), *Introduction to the Constitution of India*, New Delhi: Lescis Nescis.

Biswan, Tapan (2008), *Human Rights Gender and Environment*, New Delhi: Viva Publication.

Boot, Eric R. (2017), *Human Duties and the Limits of Human Rights Discourse*, Switzerland: Springer Publication.

Kannabiran, K. G. (2003), *The Wages of Impunity: Power, Justice and Human Rights*, New Delhi: Orient Longman.

Nickel, W. James (2007), *Making Sense of Human Rights*, USA: Blackwell Publishing.

Ray, Arun, (2004) *National Human Rights Commission in India: Formation, Functioning and Future Prospects*, New Delhi: Atlantic.

Sastry, T.S.N. (2011), *Introduction to Human Rights and Duties,* Pune: University of Pune Press.

Sathe S. P., (2004), *Judicial Activism in India*, New Delhi: Oxford University Press.

Sharma, Brij Kishore (2010), *Universal Declaration of Human Rights and Indian Law,* New Delhi: PHI Learning Publication.

Further Readings:

Baxi, Upendra (2002) *The Future of Human Rights*, New Delhi: Oxford University Press.

Kothari, Smitu and Harsh Sethi (ed.) (1991) *Rethinking Human Rights: Challenge for theory and Action*, Lokayan, Delhi.

South Asia Human Rights Documentation Centre (2006), *Introducing Human Rights: An Overview,* New Delhi: Oxford University Press.

ADVANCED DIPLOMA

PAPER A- HUMAN RIGHTS: THEORY AND PRACTICE

M. Marks: 100
Theory: 90
Internal Assessment: 10
Time: 3 Hours

Unit I - Human Rights: Theories

i) Natural Rights Theory

ii) Liberal Theory of Rights

iii) Legal Positivist Theory

iv) Marxist theory of Rights

Unit II - Core Human Rights Treaties

i) Convention on Elimination of All Forms of Discrimination Against Women (CEDAW), 1979

ii) Convention on Rights of Child (CRC), 1989

iii) Convention on Rights of Persons with Disabilities, 2006

Unit III - Human Rights Treaty Based Bodies, Process and Procedures

i) States Reporting; General Comments; Inquiries; Complaint Procedures;

ii) Treaty Body Coordination; Harmonization and Reforms.

Unit IV - Office of the High Commissioner for Human Rights (OHCHR)

i) Structure and Functions

ii) OHCHR and 2030 Agenda for Sustainable Development

Essential Readings:

Alston, P. & Goodman, R. (2012). *International Human Rights*, New York: Oxford University Press.

Basu, D.D. (2015), *Introduction to the Constitution of India*, New Delhi: Lescis Nescis.

Biswan, Tapan (2008), *Human Rights Gender and Environment*, New Delhi: Viva Publication.

Boot, Eric R. (2017), *Human Duties and the Limits of Human Rights Discourse*, Switzerland: Springer Publication.

Freedman, R. (2013). *The United Nations Human Rights Council: A critique and early assessment.* London: Routledge.

Moeckli, D. Shah, S. and Sivakumaran, S. (2013). *International Human Rights Law.* New York : Oxford University Press.

Richard Welford and Starkey Richard (2007), *Business and the Environment,* University Press.

Singh, Karamjeet and Kaur Navleen (2018), *Gender Mainstreaming in Higher Education: An Inclusive Approach,* New Delhi: Bharti Publication.

United Nations. (2008). *The United Nations Human Rights System: How to make it Work for You.* New York: United Nations.

Further Readings:

Karna, G. and K. Gahharana (1994), "Rights of Disabled Persons", in K. P. Saksena (ed.), *Human Rights: Perspective and Challenges,* New Delhi: Lancer Books , pp.416-30.

Tuck, R. (1979), *Natural Rights Theories,* Cambridge: Cambridge University Press.

Sen, Indrani (2005), *Human Rights of Minority And Women's*, New Delhi: Isha books.

PAPER B: HUMAN RIGHTS AND DUTIES: INDIAN SCENARIO

M. Marks: 100
Theory: 90
Internal Assessment: 10
Time: 3 Hours

Unit I - Human Rights and Criminal Justice

i) Hierarchy of Criminal Courts in India
ii) Rights of the Victims
iii) Rights of the Accused

Unit II – Environment and Human Rights

i) Right to Clean Environment
ii) Rights to Environment vs. Right to Development
iii) Sustainable Development Goals 2030

Unit III - Rights of the Aged and Differently Abled

i) Aged: Problems; Maintenance and Welfare of Parents and Senior Citizens Act, 2007
ii) Differently Abled: Problems; The Rights of Persons with Disabilities Act, 2016

Unit IV - Status of Minorities in India

i) Minorities and their Problems
ii) Rights of Minorities in the Indian Constitution
iii) Protection of Minorities in India: National Commissions for Minorities

Essential Readings:

Addlakha, Renu (2013), *Disability Studies in India: Global Discourses, Local Realities*, New Delhi, Routledge Taylor and Francis Group.

Applewhite, Ashton (2016), *This Chair Rocks: A Manifesto Against Ageism Perfect,* USA: Networked Books.

Ashutosh (2009), *Rights of Accused*, New Delhi, Universal Law Publishing Co.

Barnes, C.G., G. Mercer and T. Shakespeare (1999), *Exploring Disability: A Sociological Analysis,* Cambridge: Polity Press.

Barrow, C.J. (1999), *Environmental Management Principles and Practice,* London: Routledge.

Bhalla, A.S and Luo Dan (2012), *Poverty and Exclusion of Minorities in China and India*, London: Palgrave MacMillan

Gullette, Margaret Morganroth (2017), *Ending Ageism, or How Not to Shoot Old People: Global Perspectives on Aging,* London: Rutgers University Press.

Gupta, Namita (2017), *Human Rights in India: Contemporary Issues and Challenges,* New Delhi: Regal Publication.

Halder, Somnath (2013), *Rural Devlopment and Minority Group In India,* Kolkata: Sopan Publication.

Kothari, Jayna (2012), *The Future of Disability Law in India,* New Delhi: Oxford University Press.

Kuppers, Petra (2014), *Studying Disability Arts and Culture: An Introduction,* New York: Palgrave Macmillan press.

Mehrotra, Nilika (2013), *Disability, Gender and State Policy: Exploring Margins,* New Delhi: Rawat Publications.

Nelson David D. (1998). *International Environmental Auditing,* Government Institutes, Rockville, Maryland (USA)

Nelson, Todd D. and Cuddy, Amy J. C. (2004), *Ageism: Stereotyping and Prejudice against Older Persons*, USA: Library of Congress Press.

Pandey, P.K (2012), *Human Rights,* New Delhi: APH Publication.

Richard Welford and Starkey Richard (2007), *Business and the Environment,* University Press.

Sen, Indrani (2005), *Human Rights of Minority And Women's*, New Delhi: Isha books.

Singh, Karamjeet and Kaur Navleen (2018), *Gender Mainstreaming in Higher Education: An Inclusive Approach,* New Delhi: Bharti Publication.

Further Readings:

Giridhar, Gomango (1987), *Constitutional Provisions for the SCs and STs,* New Delhi: Himalaya Publishing House.

Bhatia, K. L. et al. (1995), *Social Justice of Dr. B.R. Ambedkar,* New Delhi: Deep and Deep.

Degener, Therasia and Yolan Koster-Dreese (1995), *Human Rights and Disabled Persons: Essays and Relevant Human Rights Instruments,* Dordrecht: Martinus Nijhoff.

Erb, Susan and Barbara Harris-White (2002), *Outcast from Social Welfare: Adult Disability, Incapacity and Development in Rural South India,* Banglore: Books for Change, A Unit of Action Aid Karnataka Projects.

Bhargava, G.S. and R. M. Pal, (eds.) (2000), *Human Rights of Dalits: Societal Violation,* New Delhi: Gyan Publishing House.

Arora, Nirman (1999), "Custodial Torture in Police Stations in India: A Radical Assessment", *Journal of Indian Law Institute*, Vol.41, Nos.3 and 4, pp.513-29.

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